

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 13, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Broyles, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Absent: Mr. Brown, Mr. Cook, Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. Members of the Mighty Eagles 4-H Club led the pledge of allegiance.

Consent Agenda. (All agenda items listed with the designation of contained [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Allen moved to approve Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on April 22, 2013. Motion (per Consent Agenda) carried.

Mr. Allen moved to approve payment of vouchers as presented, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1, Medium Density Residential-Established to NR-3, Neighborhood Residential-High Density for the West 44-feet of Lot 4, Block 259, Original City, Cheyenne, Wyoming (located at the southeast corner of 21st Street and Maxwell Avenue). Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#3972)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from P, Public, to CBD, Central Business District for the south ½ of Lots 1 and 2, and 16-foot vacated alley, Block 229, Original City, Cheyenne, Wyoming (located west of and adjacent to Pioneer Avenue, between 21st and 22nd Streets). Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#3973)

ORDINANCE - Vacating portions of Duff Avenue and E. 13th Street adjacent to Blocks 443, 444, 453 and 454, Original City, Cheyenne, Wyoming (located south of E. Lincolnway, west of Alexander Avenue). Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#3974)

ORDINANCE - Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties and septic and commercial waste dump rates, as recommended by the Board of Public Utilities -- referred to Finance Committee (sponsor -- Mr. Brown).

ORDINANCE - Amending the City of Cheyenne's Sanitation Fee Schedule -- referred to Finance Committee (sponsor -- Mr. Brown).

ORDINANCE - Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2013, and ending June 30, 2014 -- referred to Committee of the Whole (sponsor -- Mr. Brown).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-2 Medium Density Residential - Developing District to NR-3 Neighborhood Residential - High Density District for Lot 14, Block 1, Saddle Ridge, Fifth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Countryside Avenue and Medicine Man Trail) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Amending various Sections of Title 8, Health and Safety, Chapter 8.08, Alarm Systems, of the Cheyenne City Code pertaining to Alarm Devices and Systems, and False Alarms -- referred to Finance Committee (sponsors -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Mr. Valdez and Ms. Williams).

ORDINANCE - Granting a Franchise by the City of Cheyenne to Cheyenne Light, Fuel and Power Company, its successors and assigns, the right to furnish, sell and distribute natural gas to the City and to all persons, businesses, and industry within a portion of the City in Cheyenne Light, Fuel and Power Company's Certificated Territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute natural gas within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Approving the Title VI Program for the Cheyenne Transit Program, Cheyenne, Wyoming, and the Cheyenne Metropolitan Planning Organization. Motion (per Consent Agenda) carried. (#5492)

[CA] RESOLUTION - Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant, for the purpose of assisting in providing the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C. § 5311 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Approving the budget of the Downtown Development Authority for the Fiscal Year beginning July 1, 2013 and ending June 30, 2014 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Preliminary Plat for Polk Addition, a replat of portions of Tract 145-148, Sunnyside Addition, Fifth Filing, Cheyenne, Wyoming (located at the northeast corner of East Pershing Boulevard and Polk Avenue) -- referred to Public Services Committee.

[CA] Agreement between the City of Cheyenne, Municipal Court, and Laramie County Sheriff's Department and Laramie County, Wyoming, for Municipal Court security services. Motion (per Consent Agenda) carried (amount not to exceed \$3,500.00 monthly). (#5999)

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department, and AVI Professional Corporation, Cheyenne, Wyoming, for the Logan Avenue Reconstruction Design Project (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$490,693.00). (#6000)

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No.1 for School Resource Officer for summer school 2013 -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., for use of the land known as the "South 40" located off Missile Drive and owned by F.E. Warren Air Force Base for public transportation service during the 2013 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District No. 1 for use of buses owned by the Laramie County School District No. 1 for public transportation service during the 2013 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., for use of buses owned by the Laramie County School District No. 1 for public transportation service during the 2013 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for usage of City-owned land and buildings for parking, camping and other activities associated with the 2013 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Parks and Recreation Department, and Laramie County School District No.1 to provide transportation services for the City's Summer Recreation Camp Program -- referred to Finance Committee.

[CA] Use Agreement between the City of Cheyenne and Union Telephone Company for limited use of the public right-of-way for the installation of fiber optics, and setting a fee (revenue to City) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Sanitation Division, and DesertMicro, Jacksonville, Florida, for City sanitation trucks Global Positioning System (GPS) waste management and hauling software -- referred to Finance Committee.

[CA] Amendment No. 1 to Contract No. 5853 between the City of Cheyenne and Delta Dental of Wyoming, to decrease the premiums by 2.75%, and extend the term one additional year for dental coverage for full time city employees. Motion (per Consent Agenda) carried. (#5853)

[CA] Amendment No. 3 to Contract No. 4353 between the City of Cheyenne and the Department of the Air Force, Frances E. Warren Air Force Base Wyoming, for U.S.A.F. owned land known as the "South 40" located off Missile Drive to be used and operated as a parking lot for public transportation services during the 2014, 2015, 2016, 2017, and 2018 Cheyenne Frontier Days Celebrations -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5903 between the City of Cheyenne, Parks and Recreation Administration, and Pioneer Construction Co., Inc., Cheyenne, Wyoming, to complete the Pioneer Park Concessions/Restroom Facility (Parks Projects funding) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5868 between the City of Cheyenne, Parks and Recreation Department, and S&S Builders, LLC, Cheyenne, Wyoming, for Holliday Park Connector Project to reduce the remaining retainage to 5% of the most recent payment request (2007-2010, 2011-2014 1% Sales Tax & 1% Specific Purpose Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5394 between the City of Cheyenne, Public Works Department, Facilities Maintenance Division, and Ameri-Tech HVAC Services to exercise the option clause extending the current contract for mechanical, heating, ventilating, and air conditioning system maintenance for City buildings -- referred to Finance Committee.

[CA] Consideration of Bid #R-25-13 for furnishing small equipment for a new fire and rescue truck for the City of Cheyenne, Fire and Rescue Department (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the 2013 Wyoming Association of Municipalities Annual Convention. Motion (per Consent Agenda) carried (Mayor Richard L. Kaysen, Official Voting Delegate; City Clerk Carol Intlekofer, Alternate Delegate).

Announcement was made of the Re-Appointment of Joe Bonds to the Board of Public Utilities, to be confirmed May 28, 2013.

Announcement was made of the Appointments of James Murphy to the Board of Public Utilities, and Carol Busbee, to the Mayor's Council for People with Disabilities, to be confirmed May 28, 2013.

Announcement was made that due to the Memorial Day Holiday on Monday, May 27, 2013, the regularly scheduled meeting of the Governing Body will instead be held on Tuesday, May 28, 2013 beginning at 6:00 p.m. in City Council Chambers, Municipal Building, 2101 O'Neil Avenue, Cheyenne, Wyoming.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:11 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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